Portland Public Schools AI Guidebook: Data and Student Privacy Passages

Excerpted verbatim from *AI Guidebook (Portland Public Schools, Oregon), web page*. The source has no page numbers; locations are given by section. Ellipses (…) mark omitted text. This is a single web page with numbered sections; section names are given in each source line where the page shows one.

Objectives (excerpt)

Source: web page, section 'Introduction & Objectives'

- Address the potential risks associated with AI use, including social-emotional health, bias, inaccuracy, data privacy, academic integrity, and media manipulation (deep fakes).

Assessment Support (excerpt)

Source: web page, section 'AI for Staff'

Assessment Support: Human judgment remains essential. AI tools can support developing assessment questions or help identify areas for support or enrichment (be mindful of student data privacy).

Data Privacy and Compliance for Staff

Source: web page, section 'AI for Staff'

Staff hold a significant responsibility in protecting student and sensitive District data, and their use of AI tools must strictly adhere to all relevant federal and state privacy laws and District policies. Staff actions can have potential professional and legal ramifications if they inadvertently or intentionally compromise protected information.

Key privacy and compliance responsibilities for staff include:

- **Strict Avoidance of Oversharing:** Staff should not enter or upload any personal or sensitive information, especially student Personally Identifiable Information (PII), confidential records (e.g., student performance, behavioral reports, personal health information), or other protected data into AI tools. Entering PII into generative AI tools should always be avoided, as this information is often stored on the tool's servers and used to train the AI model. This poses risks of violating privacy regulations like FERPA, creating legal consequences, and damaging trust. Only district approved AI tools, like Gemini, should be used.
- **Adherence to Privacy Laws and Policies:** Staff must understand and comply with FERPA, COPPA, CIPA, and the Oregon Student Information Protection Act (OSIPA) when using any technology, including AI tools. Staff should only use District-approved AI tools that have been vetted for compliance with these laws, including OSIPA, which some vendors may be unaware of. District protocols for requesting any digital tool's use must be followed.
- **Using District Resources Appropriately:** Staff should use District-provided resources and accounts (like District email) for District business. Be aware that information and data on District technology is subject to monitoring and may become public record. Using personal devices to access the network may subject them to the same public disclosures. Staff should not share account passwords or access others' accounts.

- **Reporting Incidents:** Staff are responsible for immediately notifying the IT Department and following established policy in the event of loss of a device or data, or if a device is compromised. Staff should report harmful or suspicious online activity, including unauthorized mimicry or cyberbullying.
- **Tool Vetting Awareness:** Staff must understand the importance of using only approved tools that safeguard student data and include proper guardrails and age restrictions. These approved tools have been vetted by IT and Leadership to confirm that vendor Data Privacy Agreements (DPAs) are established. Staff should comply with the vendor's terms of use. Staff should also understand the privacy implications of multimodal AI tools that capture images or sound. See the Approved PPS AI Tools section.

Data Privacy & Security

Source: web page, section 'Data Privacy & Security'

Users must exercise extreme caution regarding student data and Personally Identifiable Information (PII) when using AI tools.

Never input confidential student information (including performance data, behavioral reports, health information, or any PII as defined in ORS 339.329) into generative AI tools.

Information entered into generative AI systems or integrated into existing digital resources can be stored and used for training purposes, leading to risks of data breaches, misuse, or unintended harvesting (oversharing).

Users should review and adjust privacy settings on AI tools to ensure private data is protected per PPS guidelines.

District mobile devices with student data may have endpoint protection, including encryption. Users are responsible for the security of data on their devices. Immediately notify the Technology Department in case of device loss or compromise.

The District network is subject to monitoring. There is no expectation of personal privacy when using District technology. The Technology Department reserves the right to access and disclose data on District technology or transmitted over the network, as appropriate.

District policies must comply with state and federal privacy laws, including FERPA, CIPA, COPPA (especially for users under 13), and OSIPA. OSIPA prohibits using student data for targeted advertising or non-educational profiles. You should not be using any digital resources that have not been approved for use, including embedded Ai, agentic AI, and AI-assisted devices, when performing your PPS duties.

Prohibited Uses (excerpt)

Source: web page, section 'AI & Academic Integrity'

- Using AI tools to access, share, or transmit confidential student personally identifiable information (PII) or other sensitive District data without explicit authorization and appropriate data privacy protections.

Approved PPS AI Tools (excerpt)

Source: web page, section 'Approved PPS AI Tools'

These specific tools linked below are District approved and aligned with student data privacy policies and guidelines.

Note: Use of digital apps and tools requires District approval and data privacy agreements (DPAs).

Guidance for Families: Data Privacy and Oversharing Risks

Source: web page, section 'Guidance for Families'

AI tools often collect data from user interactions, and sharing Personally Identifiable Information (PII) with AI tools should be avoided. This is a significant concern in educational settings. Familiarize yourself with school policies and relevant privacy laws like FERPA and COPPA that aim to protect student data when using educational technologies, including AI.

Guidance for Families: AI for Different Purposes and Age Groups (excerpt)

Source: web page, section 'Guidance for Families'

Many public GenAI tools have age restrictions (often 13+ or 18+). Unstructured GenAI is generally not recommended for young children. PPS will approve specific AI tools for student use, outlining who can access them.

Guidance for Families: Resources (excerpt)

Source: web page, section 'Resources'

Google for Education: Guardians Guide to AI

Use this guide to understand more about AI in education, data security and privacy protections, and how to prepare your child for AI’s possible impacts on our future.